



POLICE DEPARTMENT

May 12, 2025

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Olga Dudka :

Tax Registry No. 967049 :

90 Precinct :

Case No.

2022-24514

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Mallika Kaushal & Brian Arthur, Esqs.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Michael Martinez, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Olga Dudka, on or about November 22, 2019, at approximately 0045 hours, while assigned to the 90 Precinct and on duty, inside the subway station at Marcy Avenue and Broadway, Kings County, intentionally used force, in that she intentionally used a Taser against § 87(2)(b) without police necessity, attempting to cause physical injury.

P.G. 221-08

USE OF CONDUCTED
ELECTRICAL
WEAPONS (CEW)

P.G. 221-01

FORCE GUIDELINES

New York Penal Law §110; §120.00 (1)

ATTEMPTED ASSAULT IN
THE THIRD DEGREE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 9, 2025. Respondent, through her counsel, entered a plea of Not Guilty to the subject charge. The CCRB offered Complainant's hearsay statement and video evidence. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty.

PROCEDURAL HISTORY

The central issue in this disciplinary proceeding is whether Respondent engaged in sanctionable misconduct when, on November 22, 2019, she used a Taser against § 87(2)(b) ("Complainant") during an encounter on the Marcy Avenue Station platform. In an administrative disciplinary hearing of this nature, this Tribunal would typically be required to determine whether police officers followed the Department's rules and regulations as they handled an encounter. Here, however, CCRB failed to preserve the Statute of Limitations

(“SOL”) and then served Respondent eleven months after the extended COVID SOL¹ had expired.

The charges were served on Respondent on December 6, 2022, three years and 14 days after the date of the alleged misconduct— November 22, 2019. In this case, the 18-month statute of limitations set forth in New York Civil Service Law § 75 was extended by an additional 228 days due to the COVID-19 pandemic. As such, the statute of limitations expired on January 5, 2022. When questioned by the Tribunal as to the reason for the delay in serving the charges, the CCRB attorney proffered that the CCRB investigation was hampered by the belated disclosure of evidentiary material from this Department; CCRB offered no facts in support of this assertion.

In most instances, the law prohibits the commencement of a disciplinary case where the service date is missed. An exception to this statutory deadline is permitted pursuant to the Civil Service Law where the misconduct “complained of and described in the charges would, if proved in a court of appropriate jurisdiction, constitute a crime.”² However, relying on this crime exception to the limitations period frequently results in a greater evidentiary burden for the administrative prosecutor. Unlike disciplinary cases where charges are timely served, when the crime exception clause is invoked, it may be insufficient to prove misconduct by establishing that an officer violated Department rules. Instead, the administrative prosecutor must establish, by a preponderance of the evidence, the specific elements of each crime charged as set forth in the New York State Penal Law.³ In sum, when charges are not served by the mandated deadline,

¹ Due to the COVID-19 pandemic, Gubernatorial Executive Order 202.8 tolled the SOL for all court proceedings in New York, including administrative trials. This gave all litigants, including CCRB, an additional seven months to serve the charges.

² New York Civil Service Law Section 75(4).

³ See *Disciplinary Case No. 2018-19274* (Aug. 19, 2019), citing *Aronsky v. Bd. of Ed.*, 75 N.Y.2d 997 (1990).

an NYPD disciplinary hearing is distorted into a quasi-criminal proceeding (*See Disciplinary Case Nos. 2021-23558 & 23559* [April 12, 2024]).

More importantly, the general laxity in compliance demonstrated here deprived this Tribunal of the opportunity to evaluate this member of service's compliance with tactical guidelines and Department rules. In fact, as taught in the Police Academy, NYPD guidelines often impose a greater level of professional accountability than the Penal Law.⁴ Unfortunately, this is not the first time a CCRB case has come before this Tribunal in this compromised procedural posture. This Tribunal would welcome a more proactive approach from CCRB in protecting the SOL rather than using the crime exception as an antidote for failure to preserve it.

ANALYSIS

Summary of the Facts

*1. Complainant's Statement*⁵

On January 31, 2020, CCRB Investigator Emily Devaney conducted a video interview with Complainant while he was incarcerated at Rikers Island. The parties stipulated to the admission of Complainant's recorded interview and a recording transcript (CCRB Exs. 1, 1A).

Complainant recalled that on November 22, 2019, at approximately 0045 hours, he was traveling southbound on the J train on his way to Coney Island. He wore black pants, a black shirt, a three-quarter length coat, and a "religious" head garb. According to Complainant, a man groped his buttocks as the train crossed the Brooklyn Bridge⁶, and Complainant responded by striking the man's face with a "slapstick," a small metal retractable baton that he characterized as

⁴ Police Student Guide, Ch. 4, *Use of Force* p. 5 (Oct. 2019)

⁵ Complainant did not appear at the trial, despite CCRB's attempts to facilitate his presence.

⁶ I take judicial notice that the "J" train crosses the Manhattan Bridge, not the Brooklyn Bridge.

a “defense item.” He also had other so-called defense items on his person, such as a small blade and pepper spray, as he claimed he had been “attacked and harassed repeatedly” since moving to New York (CCRB Ex. 1A at 3, 9, 10, 12).

Although his original plan was to take the train to Coney Island, he instead got off the train at the next stop, Marcy Avenue Station, to seek help from “auxiliary security” (CCRB Ex. 1A at 4). Complainant alleges that he approached the security guards, neither of who were wearing badges, but who wore black uniforms with gray stripes, to explain the altercation. Throughout his CCRB interview, Complainant refers to Respondent and P.O. Horun as auxiliary security guards. CCRB’s Exhibit 2 depicts both officers wearing standard blue NYPD uniforms rather than black uniforms with gray stripes as Complainant described.

Complainant described P.O. Horun and Respondent, respectively, as a “6’2”, bald head, fair skinned” clean-shaven man in his “mid-30s or early 40s” with a “medium to muscular build” and a 5’2” woman with fair skin, dirty blond hair, and a slim build, in her “late 20s or mid-30s” (CCRB Ex. 1A at 14-16). There is no dispute that the two individuals Complainant referred to in his statement are Respondent and her partner; henceforth, they will be referred to in the summary of Complainant’s statement as the male officer and the female officer.

As Complainant attempted to explain what transpired on the train, the male officer grabbed him by his jacket collar and the two “began to struggle” (CCRB Ex. 1A at 18). Complainant continued to try to explain that he was not the initial aggressor but to no avail. During the scuffle with the male officer, Complainant stumbled backward and fell onto a bench. The male officer was still standing with his knee between Complainant’s legs, his hands on Complainant’s body while holding handcuffs in one of his hands. Complainant could not recall exactly where the male officer’s hands were on his body but offered that they were on his

“shoulder or still clutching onto [his] jacket” (CCRB Ex. 1A at 21). He admitted that at this point, he was trying to get the male officer off him by raising his body and getting up onto his feet (CCRB Ex. 1A at 18-20).

Complainant stated that at the same time he was struggling with the male officer, the female officer was “electrocuting” him. He claimed that she did not warn him that she was going to deploy the Taser, and neither officer told him to stop resisting. Complainant recalled that the female officer first deployed her Taser after the male officer had already struck Complainant in the face with the handcuffs. Two prongs punctured the skin on one of his hands. According to Complainant, she then “turn[ed] the volume of the thing up” and shocked him directly on his shoulder. P.O. Horun, the male officer, “started whipping the side of [his] face with the handcuffs” (CCRB Ex. 1A at 22-23). Complainant stated the prongs burned a hole in his jacket, shirt, and flesh. He claimed that he still had scars on his shoulder in the shape of the double prongs on the Taser. Complainant recalled saying during this portion of the encounter, “Stop electrocuting me. You already hit me several times. I’m not going anywhere” (CCRB Ex. 1A at 4, 22, 24).

Complainant stated that approximately six other police officers then arrived on scene. He reasoned that these officers were different from the two police officers he believed to be security guards, as the new officers had guns, badges, and full police uniform attire. The new officers then transported Complainant to a hospital. Complainant recalled that there was blood “all over” his face and that he sustained a concussion from the altercation. According to Complainant, an officer told him at the hospital they had to redo the police report because “they ripped the first one.” After Complainant was released from the hospital, he remained in police custody. He

underwent arrest processing, where police officers confiscated his jewelry, wallet, and other personal items (CCRB Ex. 1A at 24- 26).

2. *Body-Worn Camera Evidence*

The parties stipulated to the admission of Respondent's body-worn camera recording, CCRB's Exhibit 2. The following is a summary of the relevant evidence contained in the recording⁷:

- 00:22-00:30:** Complainant exits the train platform facing P.O. Horun and Respondent, then passes through the emergency exit next to the turnstiles. A bystander behind Complainant gestures to the officers, pointing at him.
- 00:30-00:39:** Respondent grabs Complainant's right wrist as he continues walking through the emergency exit; he twice yells, "They assaulted me! They both assaulted me!" Respondent, still holding his wrist, grabs his open hand with her free hand, attempting to restrain him further. Complainant stops, turns to face her, and twice states, "Listen, I was assaulted on the train. I defended myself."
- 00:39-00:46:** With both officers holding onto him, Complainant says, "Can I take my backpack off at least? I was assaulted on the train, and I defended myself. I didn't do anything — why are you arresting me?" Respondent replies, "We'll figure this out."
- 00:46-00:56:** Complainant responds, "No, you're going to have to shoot me;" he turns backward and breaks free of Respondent's grip, initiating a struggle with P.O. Horun. P.O. Horun grabs both of Complainant's shoulders as they tussle towards the turnstiles. Complainant raises his right hand toward P.O. Horun's face, and P.O. Horun grabs it, holding on as he forces Complainant backward into the doorway separating the turnstile area from the station lobby. Throughout the struggle, which lasts for about 10 seconds, Complainant repeatedly says, "You're going to have to shoot me, bro!" P.O. Horun forces Complainant down onto an empty bench using his body weight. Respondent can be seen with her Taser in hand, pointed at Complainant throughout the struggle.

⁷ CCRB's Exhibit 2 contains an interview of the alleged victim and a witness of the train assault (8:34-17:03). While this portion of the recording does tend to corroborate the content of the 911 call, as testified to by Respondent, it is not relevant to her state of mind at the moment she encountered Complainant, since it occurred well after the struggle in the subway station, with Complainant already in custody. It can, however, be considered on the issues of Respondent's credibility, Complainant's credibility, and Complainant's state of mind as he encountered Respondent.

- 00:56–01:10:** Complainant continues struggling with P.O. Horun while he attempts to gain control. Respondent aims her Taser and fires it at Complainant's abdomen as he swats at the prongs several times, rendering the Taser ineffective. While out of breath, P.O. Horun twice instructs Respondent to "call an 85." P.O. Horun struggles with his handcuffs while trying to gain control of Complainant. Complainant keeps repeating, "You're going to have to shoot me, bro," while Respondent radios for backup.
- 01:10–01:32:** With one knee between the Complainant's legs, P.O. Horun holds his wrists together. Complainant is seated on the bench with his left hand on P.O. Horun's gun belt. P.O. Horun instructs Respondent to tase Complainant again. As she reloads the Taser, Complainant yells to a bystander, "He assaulted me." To which the bystander responds, "No, he didn't. You're a liar." Complainant then tells the officers, "I have hemophilia type A; I need to go to the hospital."
- 01:32–01:49:** While holding his handcuffs, P.O. Horun warns Complainant, "I'm telling you — you better not fight anymore." He instructs Respondent, "Go, tase him now," then yells at Complainant to "give me your f***ing hands," to which Complainant does not respond. P.O. Horun tells Respondent to perform a drive stun. Complainant, staring directly at Respondent, still does not respond. P.O. Horun then punches Complainant in the head with his right fist while holding his handcuffs. Complainant draws his left hand back and P.O. Horun forces him down sideways onto the bench. Complainant's left arm is extended outward, dangling over the bench.
- 01:49–02:49:** Now bleeding from the punch, Complainant repeatedly shouts, "I have hemophilia," as P.O. Horun holds his head down. Respondent places the Taser on Complainant's right shoulder and tases him. Complainant groans in response to the Taser and whispers, "I have hemophilia type A." While handing off his radio to Respondent, P.O. Horun knees Complainant, waits a few seconds, and knees him again. Additional police officers arrive on the scene and move Complainant to the ground, where he is finally handcuffed.

3. Respondent's Testimony

Respondent detailed that she had been assigned to the 90 Precinct since graduating from the Police Academy in July 2019 (T. 29). On November 22, 2019, she was working a midnight tour with Police Officer Horun, her Field Training Officer (T. 30). There came a time when she received a call of "10-34, assault in progress, knife in the subway" from the dispatcher (T. 31, 51). The radio call provided a physical description of "a male, Black, 30 to 40 years old, wearing all black, black backpack, black sunglasses on the face and black scarf covering the

forehead” (T. 32). Respondent testified that the dispatcher informed her that the suspect had “assaulted somebody on the train with a knife, particularly stabbed the victim in the head on the train” (*Id.*). The dispatcher further advised her that the assault had occurred on a southbound J train, traveling from Manhattan into Brooklyn, that the next stop on the train would be Marcy Avenue and Broadway, and that the suspect was still aboard the train (*Id.*).

Respondent noted that since the Marcy Avenue subway station was within her sector, she and P.O. Horun responded. They were “a few blocks” away when they received the dispatcher’s call. According to Respondent, they “rerouted,” drove to the station, and “ran up the stairs” to the elevated train platform. She recalled that it was “a very long flight of stairs.” When Respondent reached the top of the stairway and eventually the platform, she recalled seeing several people who pointed toward an individual, saying, “That’s him, tase him” (T. 33).

Respondent testified that the people were pointing at a “male, Black, 30 to 40 years old wearing all black, black sunglasses on the head and a scarf over the head.” This individual (“Complainant”) was leaving the subway platform and walking toward Respondent and P.O. Horun. Respondent “already knew at that point that we would be dealing with [a] dangerous, unsafe situation that included a weapon,” based upon the contents of the dispatcher’s radio call. She testified further that she did not see a weapon in Complainant’s possession at that time (Tr. 34).

Respondent recalled that as Complainant approached her, he said, “They molested me, you will have to shoot me,” then aggressively swung his hands (T. 35). Respondent and P.O. Horun approached Complainant on either side of him with Respondent on her left and P.O. Horun on her right (*Id.*). They each took hold of one of Complainant’s hands to place him under arrest, but Complainant then swung his arms, breaking Respondent’s grip on his right hand (*Id.*).

Complainant continued to swing at P.O. Horun, as they moved toward the station's exit door (*Id.*).

According to Respondent, Complainant was "still fighting aggressively. He was not complying, and he kept swinging his arms around my partner's – partner's body" (T. 35-36). Respondent testified that P.O. Horun and Complainant eventually ended up on a bench as they continued to struggle. She testified further that "... the perpetrator still continued fighting, swinging his arms, being non-compliant. That's when my partner said, 'tase him.' At that point, I saw my partner was out of breath, completely. And my partner is a very tall, big officer. He – he worked out. At that time, he was having [a] hard time trying to have the perpetrator comply, since the perpetrator just kept fighting, fighting, nonstop" (T. 36). It was at that point that Respondent deployed her Taser for the first time (*Id.*).

Respondent used a "probe deployment" and aimed at the area of the body that is authorized by this Department, aiming for his stomach area and avoiding Complainant's head, heart or crotch area (T. 37). When she deployed her Taser, Complainant was on the bench. According to Respondent, her first deployment appeared to have had no effect, since Complainant "continued to – swinging his hands and arms" (*Id.*). Respondent speculated that the deployment may have failed due to Complainant wearing multiple layers of clothing (*Id.*). She testified further that when the Taser deployment is effective, "the person just gets immobile because it temporarily, for a very, very brief time, pauses your movement. That's what I was trying to do, to just have him comply so we can stabilize the situation and prevent further danger ... to me, my partner, and members of the public since there were so many people" (T. 38).

Respondent recounted that she observed P.O. Horun was still having difficulty handcuffing Complainant; he could not handcuff Complainant on the bench, and Complainant

began reaching for P.O. Horun's gun belt. She could not see whether Complainant was reaching for P.O. Horun's baton or his gun. At that point, P.O. Horun told Respondent, "You have to drive stun him" (T. 38).

After P.O. Horun gave her that directive, she hesitated, giving Complainant a few more seconds in case he decided to cease his resistance. When she observed that Complainant still "did not comply," she placed her Taser in drive stun mode, walked over to him and pressed the Taser to his shoulder, before discharging it for one cycle (T. 38-39, 81). Respondent testified that she did so "to have him comply to stabilize the dangerous, volatile situation," as he "posed a danger to [her], [her] partner and ... people on the scene" (T. 39, 50).

Respondent remembered that at the same time, P.O. Horun directed her to "drive stun" Complainant, he told her to "call 85," which meant calling for additional officers (*Id.*). As P.O. Horun gave her directions, he handed her his radio to make the call (T. 39-40). Respondent testified that after she deployed her Taser for a second time and additional police officers responded to the platform, they were able to handcuff Complainant with their assistance (T. 40).

Respondent next recalled that after Complainant had been handcuffed, she interviewed the victim of the train assault, identifying him as "Jim" (*Id.*). She testified that "Jim" had blood on the side of his head and he told her that it was from being struck with Complainant's retractable baton (T. 40-41, 42). "Jim" told Respondent that he was riding the train, listening to a podcast, when Complainant struck him in the head with a retractable baton without provocation (T. 42). While conducting a search of Complainant's person incident to his arrest, Respondent recovered a retractable baton from his jacket, two daggers, mace, and a "slapjack."⁸ (T. 43; Resp. Ex. A).

⁸ I take judicial notice that a "slapjack" or "sap" is a less-than-lethal weapon, usually made of leather wrapped around metal or metal shot.

On cross-examination, Respondent conceded that she could not see what may have been in Complainant's jacket pockets when she first encountered him. She saw no weapons until she recovered them after his arrest (T. 59, 60, 61). She further acknowledged that deploying a Taser in drive stun mode would be more severe than using it in probe-deployment mode, as in drive stun mode, there is direct contact with the suspect's body (T. 67).

Respondent testified further that while Complainant appeared to be reaching for something on P.O. Horun's gun belt, P.O. Horun was grasping Complainant's wrist (T. 84). She acknowledged that when Complainant said he had hemophilia, she did not ask him what that was (T. 84-85, 97). Respondent further acknowledged that when P.O. Horun told Respondent to use her Taser in drive stun mode against Complainant, even though he had not yet surrendered his hands to be handcuffed, Complainant was not moving or swinging his hands (T. 85-86). She testified further that when she did use her Taser for the second time, P.O. Horun was trying to hold Complainant down and immobilize him (T. 97).

When Respondent was questioned about whether Complainant tried to talk to her about the incident on the train, she responded, "He wasn't talking to me about the incident. He immediately started saying, 'You will have to shoot me' and 'I got molested'" (T. 101).

On re-direct examination, Respondent explained that she interpreted Complainant's statement, "You're going to have to shoot me," as him declaring that he was prepared to fight her and P.O. Horun (T. 106). She testified further that at the time he made that declaration, she believed that he possessed a weapon based on the dispatcher's call (*Id.*).

In response to questioning by the Tribunal, Respondent testified that she was wearing her standard NYPD uniform on the date of this incident, that she was not wearing anything gray, and that she did not observe any private security guards in the area (T. 112-13).

Credibility

It is long-settled that hearsay evidence is admissible in this Tribunal and may form the factual basis for a finding of misconduct if it is deemed reliable. The finder-of-fact must scrutinize the out-of-court statement for several credibility factors, including internal consistency, logic, and corroboration by independent evidence. The Tribunal must also consider whether fundamental fairness allows the statement to be credited despite the lack of an opportunity for Respondent to confront the declarant under oath during the trial. Based upon the totality of the circumstances, I find Complainant's hearsay statement credible with respect to certain factual assertions he made regarding how the encounter occurred, which were corroborated by either Respondent's body-worn camera video or his admissions; I find the balance of his statement unreliable.

In his statement, Complainant admitted to possessing an expandable baton and several edged weapons at the time he encountered Respondent; in addition, he admitted to striking a fellow subway passenger in his head with that baton before leaving the train at the Marcy Avenue stop. His claim of self-defense and the explanation for why he was carrying weapons in the New York City Transit system are self-serving statements that are irrelevant to the issues before this Tribunal. In addition, his failure to admit in his statement that he told the police officers that they would have to shoot him is more likely than not an attempt to minimize his resistance to arrest, which is another factor affecting his credibility.

Complainant also made several references in his statement to "auxiliary security guards." As stated above, I found that he was referring to Respondent and her partner. I further find that both police officers were wearing the standard blue NYPD uniform on the incident date. There is no logical explanation for why Complainant would refer to them in this manner, especially

considering he distinguished Respondent and her partner from police officers who arrived on the platform later as having “gun” and “badges” ... “the police uniform.” Even if, for the sake of argument, Complainant was confused on that date, it would still not explain why he described Respondent and her partner that way 71 days after the incident while incarcerated. Moreover, if Complainant honestly thought private security guards had assaulted him, it makes no sense that he would submit to a CCRB interview, since CCRB has jurisdiction over alleged police officer misconduct, not private security personnel.

Finally, Complainant referred to his headwear, and items in his backpack, as “religious” items. This assertion has no probative value, as it is likely a self-serving attempt at misdirection from the incontrovertible fact that he had weapons at the time of the encounter.

Based upon the foregoing factors, I find Complainant’s narration of the incident unreliable.

In contrast, Respondent’s testimony at the trial was clear, concise and had the ring of truth. The factual assertions Respondent made were logical and corroborated by independent evidence in the case, primarily her body-worn camera recording of the incident. I had the opportunity to observe her demeanor during her trial testimony and found her forthcoming and candid. While Respondent admitted to some lapses in recollection, they can be adequately explained by the passage of five years, four months, and 19 days from the date of the incident to the date of her testimony. Based on the totality of the circumstances, I found her testimony credible and reliable.

Attempted Assault in the Third Degree

As noted above, because Respondent was not served within the extended SOL period, a finding of misconduct cannot turn on whether Respondent’s actions violated tactics set forth in

the Patrol Guide. Due to this procedural irregularity, instead of using the Departmental construct applied to most disciplinary hearings, CCRB has the burden of proving all elements of Attempted Assault in the Third Degree by a preponderance of the evidence.⁹ The evidence in this case fell short of the burden of proof.

Under Penal Law Section 120.00 (1), a person commits the crime of Assault in the Third Degree when, with intent to cause physical injury to another, she causes such injury to that person. A person attempts to commit a crime, in violation of Penal Law Section 110.00, when, with intent to commit a crime, she engages in conduct which tends to effect the commission of such crime.

Therefore, CCRB has the burden of proving that:

- i. Respondent attempted to cause physical injury to Complainant by using her Taser in drive stun mode¹⁰; and
- ii. Respondent intended to cause physical injury to Complainant by using her Taser in drive stun mode.

Respondent admits that she used her Taser to stun Complainant but claims that she was legally justified in doing so. Specifically, the defense contends that the reasons Respondent used her Taser were (1) that she reasonably feared for the immediate safety of P.O. Horun and herself and (2) that her use of the Taser was necessary to overcome Complainant's resistance and effect his arrest. Since the defense of justification has been interposed, CCRB has the additional

⁹ It is well-established law that although CCRB must prove the elements of a crime under the Penal Law, it must do so by a preponderance of the evidence. This standard is much lower than what is required in criminal court proceedings: that is, proof beyond a reasonable doubt (*See Disciplinary Case No. 2018-19274* [Aug. 19, 2019], citing *Police Dept. v. Baksh*, OATH Index No. 1471/97 [Oct. 2, 1997]; see also *Dept. of Correction v. Salinas*, OATH Index No. 1375/24 [May 17, 2024], *aff'd*, NYC Civ. Serv. Comm'n Case No. 2024-0308 [Oct. 7, 2024]; *Dept. of Correction v. Blanc*, OATH Index No. 2571/11 at 5 [Feb. 2, 2012]; *Dept. of Correction v. Battle*, OATH Index No. 1052/02 at 7-9 [Nov. 12, 2002], citing *Aronsky v. Bd. of Education*, 75 N.Y.2d 997, 1000 [1990]).

¹⁰ Respondent used her Taser against Complainant in "cartridge mode-probe deployment" before she used it a second time in "drive stun" mode.

burden of disproving, by a preponderance of the evidence, Respondent's asserted defense (*See People v. Steele*, 26 N.Y.2d 526, 528 [1970], *People v. Clark*, 129 A.D.3d 1, 36 [2d Dept. 2015]). CCRB argued that at the time Respondent deployed her Taser in drive stun mode, Complainant was no longer resisting arrest.

There is no dispute that Respondent intentionally put her Taser against Complainant's arm, causing an electrical current to enter his body. Accordingly, the elements of Penal Law §120.00 (1) were established. In dispute is whether Respondent was legally justified in using force, as that defense is defined in the Penal Law.

Under New York Penal Law §35.30, "A police officer or a peace officer, in the course of effecting or attempting to effect an arrest, or of preventing or attempting to prevent the escape from custody, of a person whom he or she reasonably believes to have committed an offense, may use physical force when and to the extent he or she reasonably believes such to be necessary to effect the arrest, or to prevent the escape from custody, or in self-defense or to defend a third person from what he or she reasonably believes to be the use or imminent use of physical force . . ." Resistance to arrest raises the threshold level of reasonable force which may be used in response (Disciplinary Case No. 2018-19274 [Aug. 19, 2019], citing *Police Dept. v. Rotundi, et al.* OATH Index Nos. 919/97, 921/97 & 922/97 [Sept. 4, 1998]; Comm'r Dec. [Oct. 30, 1998]). While the reasonableness inquiry is rooted in the officer's individual belief, it is not a wholly subjective standard. The courts uniformly apply a standard that contains an objective component: the conduct of "a reasonable person" under similar circumstances (*People v. Goetz*, 68 N.Y.2d 96 [1986]).

It is uncontested that Respondent and her partner had probable cause to lawfully arrest Complainant for assault. They received a radio dispatcher's report of a person who had

committed an assault with a knife on a subway train and were directed to the Marcy Street station. Once they arrived at that station, they immediately observed Complainant, who was attempting to leave the station and whose clothing and physical appearance matched the description provided in the radio bulletin. At the same time, unidentified citizens pointed at Complainant to identify him to the police.

It is further uncontested that Complainant resisted arrest by initiating a prolonged physical struggle with P.O. Horun; Complainant admitted to struggling with P.O. Horun and Respondent's body-worn camera video corroborates that admission. In addition to Complainant's physical resistance, he: (1) stated several times, "You're going to have to shoot me," (2) ignored numerous commands from P.O. Horun to give him his hands, and (3) had his left hand near P.O. Horun's gun belt during the struggle. It is also uncontested that the radio report indicated that Complainant had a weapon.

Therefore, the issue before this Tribunal is whether CCRB disproved that Respondent's use of force was "necessary" to effect Complainant's arrest or to defend against what she "reasonably believed" was the "use or imminent use of physical force" by Complainant against P.O. Horun. I find that CCRB has not done so.

In New York State, the Court of Appeals has established that the standard for evaluating whether justification is disproved requires both a subjective and an objective analysis. As the Court explained in *People v. Goetz*, 68 N.Y.2d 96 (1986)¹¹:

¹¹ While *Goetz* involved the use of the justification defense in a case involving the use of deadly force by a citizen, the principles set forth therein regarding the defense are generally applicable to cases where police officers use force of any type.

Thus, consistent with most justification provisions, [the Penal Law]¹² permits the use of deadly physical force only where requirements as to triggering conditions and the necessity of a particular response are met . . . As to the triggering conditions, the statute requires that the actor “reasonably believes” that another person is using or about to use deadly force . . . As to the need for the use of deadly physical force as a response, the statute requires that the actor “reasonably believes” that such is necessary to avert the perceived threat.

It is well-established law that in making such determinations, the “critical focus must be placed on the particular defendant and the circumstances actually confronting him at the time of the incident” (*See People v. Douglas*, 29 A.D.3d 47, 50 [1st Dept. 2006], quoting *People v. Wesley*, 76 N.Y.2d 555, 559 [1990], citing *Goetz*, 68 N.Y.2d at 112-15). Courts are reluctant to closely second guess the “split-second decisions” of officers in difficult circumstances. Instead, the emphasis must be on whether an officer’s conduct was objectively reasonable (*See Koeiman v. City of N.Y.*, 36 A.D.3d 451 [1st Dept. 2007], citing *Graham v. Connor*, 490 U.S. 386, 396 [1989]).

As such, determining whether Respondent “reasonably believed” physical force was necessary to either effect Complainant’s arrest or defend P.O. Horun requires a two-part analysis. First, Respondent must have *actually* believed that Complainant was either: (1) using or about to use force against P.O. Horun and that Respondent’s own use of physical force was necessary to defend that officer from imminent harm; or (2) her contemplated use of force was necessary to effect Complainant’s arrest. Second, the Tribunal must find that a *reasonable person* in Respondent’s position would have believed that, too.

¹² The Court of Appeals has not directly defined the term “reasonably believe” in Penal Law §35.30 but has instead defined this term within the context of analyzing a parallel justification statute, Penal Law §35.15, which applies more broadly to all citizens invoking this defense.

a. Subjective Test

As noted above, the defense asserts that Respondent was justified in using her Taser in drive stun mode because she believed it was necessary to protect P.O. Horun from the imminent use of physical force; she also believed the use of her Taser was necessary to overcome Complainant's resistance and effectuate his arrest. Accordingly, the threshold inquiry focuses on Respondent's subjective belief. Specifically, this Tribunal must decide whether, at the moment she used her Taser against Complainant in drive stun mode, Respondent *actually* believed that the threat of physical force against P.O. Horun was imminent and that deploying her Taser in drive stun mode was *necessary* to stop that peril. In addition, the Tribunal must evaluate whether Respondent *actually* believed that deploying her Taser in drive stun mode was *necessary* to effect Complainant's arrest¹³ (*See People v. McClellan*, 49 A.D.3d 1203, 1204 [4th Dept. 2008], quoting *Wesley*, 76 N.Y.2d at 559 [finder of fact "must first determine whether defendant 'actually believed that deadly physical force was necessary'"])). After careful review of the record in its entirety, this Tribunal finds that the preponderance of the credible evidence established that this was Respondent's actual belief when she deployed her Taser.

It is undisputed that once Complainant encountered Respondent and her partner, Complainant spontaneously claimed that he was "molested" and then asked for permission to take off his backpack. At that point, neither police officer knew what the contents of the backpack were; based upon the dispatch call advising that their suspect had committed an assault with a knife and the persons on the subway platform pointing at Complainant, it was reasonable for Respondent and P.O. Horun to be concerned that there was a weapon inside the backpack.

¹³ As noted above, the legal standard requires that this Tribunal evaluate Respondent's *actual* beliefs about what constituted imminent danger warranting force. At trial, Respondent specifically asserted that her decision to deploy her Taser was based on an immediate fear for P.O. Horun's safety, her own and that of the members of the public present on the subway platform.

Complainant then broke free of their handholds, declared that the police officers would have “to shoot” him, and began a protracted, determined fight with P.O. Horun.

After P.O. Horun struggled with Complainant for a period without being able to subdue him, both men fell onto a wooden bench and continued struggling with each other. Respondent fired her Taser at Complainant in cartridge mode, but that discharge did not appear to have any effect on his resistance. P.O. Horun and Complainant appeared to reach an impasse where P.O. Horun seemed to be growing fatigued, but Complainant still did not make any attempt to surrender his hands to be cuffed; in fact, Complainant held onto P.O. Horun after Horun punched him in the face.

P.O. Horun appeared to be preparing for a final effort to subdue Complainant when he ordered Respondent to use her Taser in drive stun mode. Complainant then declared that he had “hemophilia type-A” and demanded to be taken to a hospital. P.O. Horun directed Complainant again to surrender his hands; when he did not respond, P.O. Horun struck him in the face and used his body weight to force Complainant onto his left side on the bench. It was at this point that Respondent used her Taser for the second time, pressing it against Complainant’s right shoulder. The body-worn camera recording shows Complainant moaning, apparently from the effect of the Taser, continuously chanting, “I have hemophilia type-A,” then laying limp on the bench before he was brought to the ground by several police officers who arrived on the platform seconds after Respondent’s second Taser deployment.

Based upon the totality of the evidence, I find that at the time Respondent deployed her Taser in drive stun mode, she reasonably believed that Complainant had not, and was not about to, cease his resistance and submit to arrest. The evidence shows that he engaged in an intense physical struggle with P.O. Horun for approximately one minute, including being punched

several times, but persisted in his resistance. I further find that Respondent, based on Complainant's spontaneous declaration that the police would have "to shoot" him, could reasonably believe that he had no intention of surrendering peacefully; in fact, there is no evidence in the record from which this Tribunal may infer that he was about to surrender.

CCRB's argument that Complainant's assertion that he had hemophilia was a change in circumstance which should have caused Respondent to hesitate in using force, if not forgoing it altogether, lacks merit. First, there is no evidence in the record to support Complainant's assertion that he suffered from this disease. Based upon the record, it is a fair inference that Complainant's assertion was a last-ditch attempt to avoid arrest rather than acquiescing to it. Second, even if Complainant's assertion were true, he was still engaged in violent resistance and was believed to possess a weapon that Respondent had not yet seen. It would have been reasonable for Respondent to be concerned that if Complainant had broken free from P.O. Horun, he could get to a weapon and further endanger them.

Finally, the evidence demonstrates that Respondent understood P.O. Horun, a tall, physically fit police officer, as she described him, was tiring from his prolonged struggle with Complainant. The evidence supports a finding that it would have been reasonable for her to calculate that the second deployment of her Taser against Complainant, in drive stun mode, would be a last-ditch effort to avoid escalating to the use of deadly physical force, should he break free from her partner.

Accordingly, this Tribunal finds that the preponderance of the evidence proved Respondent's defense and that she is Not Guilty of the misconduct set forth in Specification 1.

b. Objective Test

Even though this Tribunal has credited Respondent's assertion that at the time of her second Taser deployment, she actually believed: (1) P.O. Horun was in imminent danger of physical injury, and (2) that force was necessary to effectuate Complainant's arrest, the law still requires an assessment to determine whether that belief was objectively reasonable. Indeed, this is because an honest belief may still be unreasonable, no matter how genuine. A careful review of the record has led this Tribunal to conclude that, under these specific circumstances, Respondent's stated belief and subsequent actions were objectively reasonable. In short, the preponderance of the evidence proved that a reasonable police officer under similar circumstances would have believed that the force used was necessary to avert imminent danger. (See *People v. Castillo*, 2024 N.Y. Slip Op. 05817 [Nov. 21, 2024], quoting *People v. Collice*, 41 N.Y.2d 906, 907 [1977]; *Goetz*, 68 N.Y.2d at 115).

Analyzing the reasonableness of a police officer's actions "requires careful attention to the facts and circumstances of each particular case." This Tribunal is mindful that it is often "reasonable for police to move quickly if delay 'would gravely endanger their lives or the lives of others'" and that this "is true even when judged with the benefit of hindsight, the officers may have made 'some mistakes'" (See *City & Cnty. of San Francisco v. Sheehan*, 575 U.S. 600, 612 [2015], citing *Heien v. North Carolina*, 574 U.S. 54, 61 [2014]; *Warden, Md. Penitentiary v. Hayden*, 387 U.S. 294, 298–99 [1967]; see also *Graham v. Connor*, 490 U.S. 386, 396 [1989]).

As discussed in detail above, Respondent raised the defense that her use of a Taser against Complainant was justified because she believed P.O. Horun was in danger of being assaulted and Complainant had not yet submitted to being handcuffed. The record establishes that this was an objectively reasonable belief when Respondent deployed her Taser for the

second time. CCRB's Exhibit 2, Respondent's body-worn camera recording, provides the most compelling evidence supporting this finding.

CCRB's Exhibit 2 shows that as soon as Complainant exited the subway platform area, he declared himself the victim of an assault and admitted that he "defended himself." This admission, captured on the video and reasserted during Complainant's CCRB interview, combined with the information in the dispatcher's call, and the identification of Complainant by other persons on the subway platform, would lead any police officer hearing it to conclude: (1) the description provided in the dispatcher's call matched the appearance of the person who was before them; (2) the person before them admitted that he was involved in a physical confrontation and used force against another person; and (3) the temporal and physical nexus of the person before them to the incident reported made it more likely than not that the person before them was the same person who had assaulted a fellow train passenger with a weapon reported to be a knife.

Complainant's (a) request to remove his backpack, (b) physically breaking the handhold the police had on his wrists, and (c) his declaration that the police would have to shoot him made it more likely than not that he was still in possession of some incriminating evidence and was so motivated to prevent the discovery of that evidence that he initiated a violent struggle with two armed police officers.

The video shows that Respondent first deployed her Taser in cartridge mode and that the deployment was unsuccessful in defeating Complainant's resistance. It also captures P.O. Horun's numerous orders to Complainant to give him his hands, even including the use of profanity, *i.e.*, "Give me your f-cking hands." Finally, while Complainant and P.O. Horun struggled in an awkward position on the bench, and Complainant had his left hand gripping

something near P.O. Horun's gun belt, P.O. Horun told Respondent to "drive stun him." Upon hearing this, Complainant's response was not to release his grip and declare that he was surrendering, but instead, he stated that he had "hemophilia type-A." A reasonable police officer, even one who was familiar with hemophilia, could infer that Complainant made that declaration in a desperate attempt to avoid being tased again.

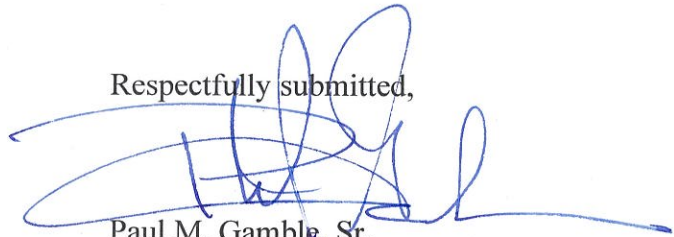
I note that at the time of this incident, Respondent was a rookie police officer who had only been out of the police academy for five months and was still under the instruction of her Field Training Officer, P.O. Horun.

In sum, the evidence showed that at the moment Respondent used her Taser for the second time against Complainant: (a) he was involved in a violent struggle he initiated and persisted in; (b) he had refused to follow police commands; (c) he was unrestrained; (d) he had already been Tased once with no apparent effect; and (e) still had a backpack and a jacket on his person, either of which could have contained a weapon. Under the totality of the circumstances, it was objectively reasonable for Respondent to deploy her Taser a second time to overcome his resistance and complete his arrest (*see Scoma v. City of New York*, 2021 U.S. Dist. LEXIS 12727 *31 [E.D.N.Y. 2021] ["[V]iewing the totality of the circumstances, [the officer] confronted an individual suspected of a violent crime who was uncooperative, unrestrained, and not incapacitated by the first deployment of the Taser. Accordingly, [the officer's] second use of the Taser after plaintiff stood up and continued to resist arrest was not objectively unreasonable"]; *see also Fuentes v. Schemmer*, 2023 U.S. Dist. LEXIS 7200 *18 [S.D.N.Y. 2023] ["Although neither the Supreme Court nor the Second Circuit has defined 'active resistance,' the Second Circuit has upheld uses of force involving tasers where the suspect was actively non-compliant with the Officers' directions"]; *People v. Atkinson*, 119 A.D. 3d 1151, 1153 [3d Dept. 2014]

[Defendant, a convicted felon, was arrested on a parole violation. After police stopped the car he was in, he refused to show his hands or get out of the vehicle when ordered. He used his legs to resist during and after his removal from the car. Once placed on the ground, he kept his hands under his body and refused to comply with orders to put his hands behind his back. He also failed to comply with orders to open his mouth or spit out what was in his mouth despite warnings that he would be tased. The police officer's decision to tase defendant, believing that he had narcotics in his mouth and unsure of whether he had a concealed weapon, was reasonable]).

Accordingly, this Tribunal finds that the preponderance of the credible evidence proved that Respondent was justified in using her Taser in drive stun mode against Complainant. As such, she is Not Guilty of the misconduct set forth in Specification 1.

Respectfully submitted,

A handwritten signature in blue ink, appearing to read "Paul M. Gamble, Sr.", written over a horizontal line.

Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPROVED

JUL 30 2025


JESSICA S. TISCH
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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MOHAMMAD KHALID
INTERIM CHAIR

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038

May 12, 2025

Re: PO Olga Dudka
Disciplinary Case No. 2019-20843

Commissioner Tisch:

The above-referenced case was tried on April 9, 2025, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Police Officer Olga Dudka, was charged with the following:

1. Police Officer Olga DUDKA, on or about November 22, 2019, at approximately 0045, while assigned to 090 PCT and on duty, in the vicinity of Inside subway station at Marcy Avenue and Broadway, Kings County, intentionally used force, in that she intentionally used a Taser against § 87(2)(b) without police necessity, attempting to cause physical injury.
PG 221-08 USE OF CONDUCTED ELECTRICAL WEAPONS (CEW); PG 221-01 FORCE GUIDELINES; PL§ 110/120.00(1) ASSAULT IN THE THIRD DEGREE

CCRB has reviewed the June 26, 2023, draft decision of Assistant Deputy Commissioner-Trials Paul M. Gamble (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925(2d Dept. 1975).

The Tribunal found Respondent Dudka not guilty of Specification One (1). It is respectfully requested that you reject ADCT Gamble’s findings, find the Respondent guilty of Specification One (1) and accept CCRB’s recommended penalty of the forfeiture of Fifteen (15) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

EXHIBITS

CCRB Exhibits

1. § 87(2)(b) CCRB Interview, dated January 31, 2020, 201910324_20200131_1159_IA.MP3
- 1a. § 87(2)(b) Certified Interview Transcript, dated January 31, 2020
2. PO Olga Dudka Body-Worn Camera Footage, dated November 22, 2019, 201910324_20200127_1151_DMI

Respondent Exhibits

1. Pictures of items removed from § 87(2)(b) (from Property Receipt)

Complainant's Statement to the CCRB

CCRB Exhibit 1 and 1a provides § 87(2)(b) statement to the CCRB, dated January 31, 2020.

In his statement, § 87(2)(b) described his initial interaction with the officers in positive terms: he stated he was glad they were there, that he wanted to speak with them to explain the situation and to ask for help. (CCRB Ex. 1a. Pg. 17, lines 13-15). § 87(2)(b) said he tried to explain what happened and wanted to make a complaint himself. (CCRB Ex. 1a. Pg. 4, lines 3-7). § 87(2)(b) conveyed that despite his expressed desire to talk to the police, they didn't wait and listen, instead they immediately grabbed him. (CCRB Ex. 1a. Pg. 17, lines 13-15). § 87(2)(b) stated that the officers grabbing and restraining him is what begins the struggle between himself and Officer Horun. (CCRB Ex. 1a. Pg. 4, lines 7-13).

§ 87(2)(b) stated that at some point during the struggle, he fell backward onto a bench nearby and tried to raise himself up, but accidentally bumped into the officer, noting that he did not use his fists. (CCRB Ex. 1a. Pg. 4, lines 7-13). While seated on the bench, § 87(2)(b) stated that the male officer removed his handcuffs from his cuff case and punched him in the face repeatedly with the handcuffs, and then he turned the handcuffs and whipped the side of his face with the handcuffs at the same time as which he was being electrocuted by the other officer. (CCRB Ex. 1a. Pg. 4, lines 14-20). He clarified that the female officer was the one electrocuting him while he was laying on the bench after he had already been struck in the face. (CCRB Ex. 1a. Pg. 20, lines 20-25 & Pg 21, line 2). He also stated that he was never given a warning before being tased. (CCRB Ex. 1a. Pg 22, lines 5-11). § 87(2)(b) stated that after an initial shock to the hand, he was tased in the shoulder. (CCRB Ex. 1a. Pg 23, lines 9-15).

§ 87(2)(b) affirmed that Officer Horun's punch to his head occurred in conjunction with the tase in drive-stun. He stated that he was punched in the face with handcuffs, and while the force of PO Horun's hand and handcuffs remained on his head, he could feel being electrocuted – he could feel the taser burning a hole through his jacket, his shirt, and into his flesh. (CCRB Ex. 1a. Pg. 4, lines 14-20). He stated that he still has scars on his arm from the tase. (CCRB Ex. 1a. Pg. 24, lines 10-13.)

Body-Worn Camera

CCRB Exhibit 2, Officer Dudka's Body-Worn Camera (BWC), captured the interaction, arrest and processing of § 87(2)(b) by Officer Dudka, Officer Horun, and their fellow officers on November 22, 2019.

In the BWC footage, § 87(2)(b) is seen walking through the platform exit door calmly and at a normal pace, approaching the officers in the vestibule area (between doors to the platform and turnstiles to exit) with his hands slightly raised, allowing Officer Dudka to take his hand into her grip (both officers immediately upon approaching him go to grab his hands). (CCRB Ex. 2, 00:55:48-51). The officers move § 87(2)(b) out of the doorway further into vestibule, while keeping a loose grip on his hands – Officer Dudka is in front of § 87(2)(b) and Officer Horun is behind him. (CCRB Ex. 2, 00:55:51-55). § 87(2)(b) tries explaining what happened – he is loud but not aggressive, he says he was assaulted on the train and he defended himself. *Id.* During this explanation, Officer Dudka’s hand is still gripping § 87(2)(b) wrist, and he does not try to pull away at this point. *Id.* When officers take out their handcuffs, further signaling their intent to restrain § 87(2)(b) he asks, “can I take my backpack off at least”, followed by, “I didn’t do anything, why are you arresting me?” (CCRB Ex. 2, 00:56:00-02, 00:56:05-07). The only explanation offered to § 87(2)(b) at all is when Officer Dudka simply states, “we are gonna ... we’ll figure this out” as she places her free hand on the same arm she’s already gripping and goes to push that arm behind his back. (CCRB Ex. 2, 00:56:05-07). That is when § 87(2)(b) states, “No, you gon have to shoot me” for the first time. (CCRB Ex. 2, 00:56:07-08).

§ 87(2)(b) turns around to slip out of Officer Dudka’s grip and runs right into Officer Horun, who grabs § 87(2)(b) and slams him against the turnstile doors. (CCRB Ex. 2, 00:56:07-10). Their grappling continues as § 87(2)(b) tries to get away until Officer Horun pushes § 87(2)(b) to the bench. (CCRB Ex. 2, 00:56:08-17). Officer Horun remains on top of § 87(2)(b) trying to pin him down to the bench, where § 87(2)(b) is now in a seated position. *Id.*

Officer Dudka deploys her Taser in prong mode as § 87(2)(b) is trying to get out from under PO Horun. (CCRB Ex. 2, 00:56:17-23). Officer Dudka deploys her Taser from the length of one bench seat, which appears to be less than 5 feet away.

§ 87(2)(b) calms down and he stops trying to get away. At 00:56:44, § 87(2)(b) is sitting a little slumped on the bench, Officer Horun is sitting on top of him, the officer has § 87(2)(b) left hand in his grip, and § 87(2)(b) appears motionless – he does not move his hands or his body. As he is sitting there, bleeding from his face, § 87(2)(b) states, multiple times, that he has hemophilia and states, also more than once, that he needs to go to the hospital. (CCRB Ex. 2, 00:56:47-57). Neither officer asks him to elaborate on his condition. *Id.*

Instead, Officer Horun, looks right at Officer Dudka and says, “tase him now.” (CCRB Ex. 2, 00:56:59-00:57:00). Officer Horun turns to § 87(2)(b) says “give me your fucking hands,” then turns back to Officer Dudka to tell her to drive-stun him. (CCRB Ex. 2, 00:57:00-05). Then, without waiting for a response, Officer Horun takes his right hand, which is holding his handcuffs, and uses it to punch § 87(2)(b) on the side of his head. (CCRB Ex. 2, 57:05).

In the lead up to the punch, § 87(2)(b) does not appear to move his arms, body, legs, etc., he appears motionless, he maintains eye contact with the BWC, and he does not say anything. (CCRB Ex. 2, 00:56:07-57:05). In the moments after the punch, § 87(2)(b) slumps forward, with his head down. (CCRB Ex. 2, 00:57:05-14).

Officer Horun grabs § 87(2)(b) by the collar and pushes him down against the bench, his other hand going to his head, and pushes § 87(2)(b) down using his full body weight. (CCRB Ex. 2, 00:57:05-14). § 87(2)(b) is once again not moving except to where Officer Horun is pushing him. *Id.* While Officer Horun is holding § 87(2)(b) down with his full body weight, § 87(2)(b) is bleeding profusely, his arm is hanging off the bench, and his eyes keep closing. *Id.*

Officer Dudka then tases § 87(2)(b) in drive-stun mode. (CCRB Ex. 2, 00:57:06-27). She asks Officer Horun to move and give her space, as he is already exerting force by pressing § 87(2)(b) down with his body weight; Officer Dudka then keeps the Taser pressed against § 87(2)(b) arm for 10 seconds. *Id.*

Testimony

Officer Olga Dudka

Officer Dudka testified that on November 22, 2019, she and Officer Horun responded to the train station at Marcy Avenue and Broadway because there were multiple calls made to 9-1-1 and the radio dispatcher broadcasted a radio run over to them. (Trial Transcript Pg. 31). They were told by the dispatcher that someone assaulted a person on the J train with a knife, the train was traveling southbound with Marcy and Broadway to be its first stop after assault, and that the description of the perpetrator was a male, Black, 30 to 40 years old, wearing all black, black backpack, and black sunglasses on his face. (Trial Transcript Pg. 32).

Officer Dudka testified that as soon as they arrived near the platform they saw the person multiple people were pointing out as the perpetrator, he also matched the description to the assault, but they did not see a weapon on him. (Trial Transcript Pg. 34). Officer Dudka testified that the person they approached, § 87(2)(b) immediately became aggressive, immediately stated “you will have to shoot me,” immediately started swinging his hands, and immediately attacked her partner. (Trial Transcript Pg. 35). Officer Dudka does later admit that upon initial approach, she is able to grab § 87(2)(b) hand on one side, while Officer Horun approaches on the other to do the same, that she is successful in grabbing § 87(2)(b) hand, and that he does not pull away immediately – she’s able to maintain contact for around half a minute. (Trial Transcript Pg. 99-102). She then stated § 87(2)(b) never tried talking to them about the incident, he just started yelling and saying, “you will have to shoot me.” (Trial Transcript Pg. 101-102). She once again backtracks and says he pulled his hand out of her grip immediately and started swinging at her partner. *Id.* She admitted they were attempting to place him in handcuffs but had not asked him any questions, given him any commands, or conducted a simple pat down, despite not seeing any weapons in his hands, prior to reaching for their cuffs. (Trial Transcript Pg. 102-104). Officer Dudka testified that a struggle ensued between Officer Horun and § 87(2)(b) until they both fell onto a nearby bench, at which point Officer Horun instructed Officer Dudka to tase § 87(2)(b) which she does by deploying the prongs. (Trial Transcript Pg. 36, 76-77). § 87(2)(b) is on the bench at the time she deployed her Taser; she testified that the tase did not appear to work. (Trial Transcript Pg. 37). Despite the Taser’s failure the first time around, Officer Dudka acknowledged that § 87(2)(b) does stop fighting, “momentarily.” (Trial Transcript Pg. 82). Officer Dudka claimed that § 87(2)(b) is also holding onto Officer Horun’s belt. She stated that § 87(2)(b) left hand is shown in the BWC to grab the gun belt, but upon review of the video, she admitted that § 87(2)(b) left hand is actually within Officer Horun’s grip and that the Officer is holding onto § 87(2)(b) hand in order to prevent § 87(2)(b) from reaching his belt. (Trial Transcript Pg. 83-84). She also admitted that § 87(2)(b) is, in this moment, not moving his body and he’s not swinging or moving his arms or hands. (Trial Transcript Pg. 86). The Officer testified that § 87(2)(b) was still “not complying” and her partner was still unable to cuff him, so Officer Horun told her to tase § 87(2)(b) in drive-stun mode, which she did. (Trial Transcript Pg. 38-39). She testified that although speaking with Officer Horun right beforehand, she does not actually see Officer Horun turn and punch § 87(2)(b) but she does see the blood on § 87(2)(b) face, she sees Officer Horun continue to hold § 87(2)(b) down, and she still proceeds to ask Officer Horun to give her some space so that she can tase § 87(2)(b) (Trial

Transcript Pg. 88, 94-97). She also testified that § 87(2)(b) stated before the second tase that he had hemophilia and she acknowledged she did not ask any further questions about his condition at any point. (Trial Transcript Pg. 97).

Officer Dudka stated she believed that at the time she tased § 87(2)(b) in drive-stun mode he was posing a danger to her, Officer Horun, and other people. (Trial Transcript Pg. 50). After the second tase, other units also arrived, and they were able to place § 87(2)(b) in custody. (Trial Transcript Pg. 40). She testified to the weapons that were recovered from § 87(2)(b) body and backpack but clearly states that those were recovered during a search of his person only after the arrest was effectuated and § 87(2)(b) was cuffed and in custody. (Trial Transcript Pg. 43, 60-61). Prior to his arrest, Officer Dudka did not see a weapon in § 87(2)(b) hand, she couldn't tell if his jacket contained a weapon, § 87(2)(b) did not verbally threaten her generally nor with a weapon specifically. (Trial Transcript Pg. 60-61, 105-106).

Officer Dudka confirmed in her testimony that she was trained on the use and effects of Conduct Electrical Weapons ("CEWS"), that she has read the "Instructions, Warning and Information for a Law Enforcement" that come with her department-issued Taser, and that she knows that tasers in general can cause negative effects on a person's physiology (cardiac dysfunction, respiratory dysfunction, involuntary muscle contractions). (Trial Transcript P. 62-65, 67, 72-73). She knows the risk of these effects are greater and more serious for individuals with certain health conditions. (Trial Transcript Pg. 75). She knows that drive-stun mode should only be used as an alternative when the deployment of the prongs fails, as the drive-stun mode is more severe, due to the direct contact the device makes with the person's skin, causes pain, and is likely to cause burns, scarring, and skin irritation. (Trial Transcript Pg. 65, 67, 74).

PROCEDURAL NOTES

The Tribunal's Draft Decision begins with a discussion of the CCRB's choice to charge Police Officer Dudka not just with a violation of departmental policy but with an NY criminal penal law violation. When a member of service commits misconduct that may also be charged as a crime, the standard statute of limitations of eighteen (18) months no longer apply and service of charges are not constricted to any particular timeframe so long as the crime is proven on a preponderance of the evidence.

The Statute of Limitations for commencement of disciplinary hearings for city employees is derived from New York Civil Service Law § 75 ("Removal and other disciplinary action"). Part 4 states that, "no ... disciplinary proceedings shall be commenced more than eighteen months after the occurrence of the alleged incompetency or misconduct complained of and described in the charges, ... however such limitations shall not apply where the incompetency or misconduct complained of and described in the charges would, if proved in a court of appropriate jurisdiction, constitute a crime." Here, the misconduct alleged would constitute the crime of attempted assault in the third degree and therefore is not required to commence within the Statute of Limitations.

This is an important fail safe so that the most serious allegations, only those that meet the elements of a criminal charge, are not precluded from prosecution due to a time constraint. Ultimately, the reasons for any delay are immaterial so long as the requirements of Part 4 are met. Here, even the Tribunal's finding agreed that the elements of the crime charged were established. (Tribunal Decision Pg. 16).

RESPONDENT IS GUILTY OF SPECIFICATION ONE

We disagree with the Tribunal's finding that CCRB fell short of proving all elements of Attempted Assault in the Third Degree by a preponderance of the evidence because Officer Dudka was justified in using her Taser in drive-stun mode against § 87(2)(b) (Tribunal Decision 14-15, 26).

I. Officer Dudka Committed an Attempted Assault in the Third Degree

New York Penal Law § 120.00(1) states, "a person is guilty of assault in the third degree when with intent to cause physical injury to another person, he causes such injury to such person or to a third person." New York Penal Law § 110.00 states, "a person is guilty of an attempt to commit a crime when, with intent to commit a crime, he engages in conduct which tends to effect the commission of such crime." Thus, a person is guilty of an attempted assault when, with the intent to cause physical injury to another person, he engages in conduct which *tends* to cause an injury. Actual injury is not required to prove a crime of attempt.

Some courts have read a rebuttable presumption into attempt cases, asserting that one intends the natural and probable consequences of one's own act. Prince, Richardson on Evidence § 3-138. Through *People v. Bracey*, 41 N.Y.2d 296 (1977), the New York Court of Appeals asserted that where there is no admission of intent to cause physical harm by the defendant, as is fairly common, and if it is not possible to look only at the act and its "natural consequences" to discover intent, then intent can also "be inferred from the defendant's conduct and the surrounding circumstances." In *Bracey*, the defendant denied any intent to commit an assault, however, the Court of Appeals held that based on the evidence of the defendant's conduct and the surrounding circumstances, there is sufficient evidence for a jury to conclude beyond a reasonable doubt that defendant is guilty of an attempted assault.

The Second Department has since delivered several supporting examples. In *In re Eric C.*, 281 A.D.2d 543 (2d Dept. 2001), the Court held that the intent to cause physical injury can be inferred from the appellant's actions of punching the victim in the chest and such evidence was legally sufficient to establish beyond a reasonable doubt that the appellant had committed an attempted assault. The Court also includes in its holding that just because the victim managed to avoid physical injury does not preclude a finding that the appellant intended to inflict injury by virtue of his actions, and a lack of injury is no defense to the charge of attempted assault. *Id.* In *Matter of Tiffany D.*, 29 A.D.3d 693 (2d Dept. 2006), the Court found that the defendant's kick to the complainant's face sufficiently established defendant's intent to cause physical injury as well as attempt to commit the crime of assault in the third degree. In *People v. Dreyden (James)*, 28 Misc. 3d 5 (2d Dept. 2010), the Court held that an inference can "rationally [be] drawn" from the alleged facts – defendant pushed the victim to the ground – into the defendant's intent to inflict a physical injury.

It is undisputed that Officer Dudka tased § 87(2)(b) twice. Officer Dudka first fired her Taser in prong-deployment mode because she stated § 87(2)(b) was fighting with her partner, Officer Horun. (Trial Transcript P. 37-38). Less than a minute later, Officer Dudka tased § 87(2)(b) for a second time in drive-stun mode. (CCRB Ex. 2 00:56:17-23, 00:57:14-27).

If a punch, kick, push are all acts which constitute an attempted assault, then certainly the use of a Taser in drive-stun mode does as well. Moreover, given the surrounding circumstances

of the tase in drive-stun, there is sufficient evidence to conclude defendant is guilty of an attempted assault.

Prior to the second tase, § 87(2)(b) was sitting on the bench, no longer moving his arms, hands, or body generally, not speaking, but also not responding to commands. (Trial Transcript P. 38-39, 86; CCRB Ex. 2 00:56:44-57:05) Officer Dudka states that although her partner told her to tase § 87(2)(b) in drive-stun mode at this point, she didn't want to immediately drive-stun § 87(2)(b) so she gave him a few seconds to comply – presumably with the commands that Officer Horun gives (“give me your fucking hands”). (Trial Transcript P. 38-39, CCRB Ex. 2, 00:56:58-57:03). In the body-worn camera, immediately after this command, without providing sufficient opportunity for compliance, Officer Horun uses the hand holding his handcuffs, makes it into a fist, and uses it to punch § 87(2)(b) in the head. (CCRB Ex. 2, 00:57:00-06).. In the moments after the punch, § 87(2)(b) slumps forward, with his head down and Officer Horun uses the opportunity to push § 87(2)(b) down into the bench use the full weight of his body. (CCRB Ex. 2, 00:57:05-14). Officer Dudka testified that she sees the blood on § 87(2)(b) face, and she sees Officer Horun continuing to hold § 87(2)(b) down to immobilize him. (Trial Transcript 94, 97). In the body-worn footage, it is clear § 87(2)(b) is laying down on the bench, bleeding, with his arm hanging off the bench completely limp, Officer Horun continues to exert pressure from on top of § 87(2)(b) thereby keeping him immobilized. (CCRB Ex. 2, 00:57:05-14). It's after this that she asks Officer Horun to give her some space so that she can tase § 87(2)(b) in drive-stun mode. (Trial Transcript Pg. 94-95; CCRB Ex. 2, 00:57:06-27). She also testified that § 87(2)(b) told the officers prior to the second tase that he had hemophilia and she acknowledged that she did not ask any further questions about his condition at any point. (Trial Transcript Pg. 97).

Officer Dudka made the decision to tase § 87(2)(b) for the second time, in drive-stun mode, knowing that tasing a person in drive-stun mode is more severe than prong-deployment. (Trial Transcript P. 67, 74). Officer Dudka knows that the electrical charge of a taser can cause certain physiological changes or disruption, even if they are meant to be momentary, and create risk for physical harms such as injury from involuntary muscle contractions and cardiac, respiratory, or other dysfunction. (Trial Transcript P. 72-73) Officer Dudka knows that tasing in drive-stun mode would additionally cause pain and likely injury, such as burning, scarring, or skin irritation. (Trial Transcript P. 74). PO Dudka knows these effects and potential for injury are exacerbated by certain medical conditions. (Trial Transcript P. 74). Yet, when § 87(2)(b) repeatedly told her he had a medical condition, she ignored it, despite knowing this information could put him at an increased risk for physical injury.

Therefore, through Officer Dudka's act of tasing § 87(2)(b) particularly while Officer Horun continued to exert physical force that injured and immobilized § 87(2)(b) who had also made officers aware of his medical condition, an intent to cause injury can be inferred and imputed to PO Dudka. While § 87(2)(b) states that he was in fact burned and scarred, actual injury is not required to prove a crime of attempt.

The Tribunal essentially agrees that a preponderance of the evidence proves that Officer Dudka committed an attempted assault in the third degree against § 87(2)(b) “There is no dispute that Respondent intentionally put her Taser against Complainant's arm, causing an electrical current to enter his body. Accordingly, the elements of Penal Law §120.00 were established.” (Tribunal Decision Pg. 16).

II. Officer Dudka violated NYPD Departmental Policy

Not only were the elements of Penal Law §120.00 established, as the Tribunal agrees, but the CCRB also proved by a preponderance of the evidence that Officer Dudka violated Patrol Guide 221-08, as she was also charged with.

Patrol Guide 221-08 states, in pertinent part, that:

“[C]onducted electrical weapons (CEWs) should only be used against persons who are exhibiting active aggression, actively resisting, or to prevent individuals from physically injuring themselves or other persons actually present. ... Fleeing should not be the sole justification for using a CEW against a subject. Members should consider the severity of the offense, the subject's threat level to others, and the risk of serious injury to the subject before deciding to use a CEW on a fleeing subject. A CEW should never be used in CARTRIDGE or DRIVE STUN mode on a rear-cuffed prisoner. ... It is strictly prohibited to use the CEW on persons as a form of coercion or punishment and on persons who passively resist (e.g., going limp, offering no active physical resistance).”

Pg. 6-7.

The Patrol Guide defines “active aggressive” as a “threat or overt act of assault combined with present ability to carry it out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent.” P.G. 221-08 Pg. 2. The Patrol Guide defines “active resistance” as “physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody.” Lastly, the Patrol Guide defines “passive resistance” as “minimal physical action to prevent a member from performing their lawful duty. For example, a subject failing to comply with a lawful command and standing motionless and/or a subject going limp when being taken into custody.”

While § 87(2)(b) is initially displaying both active aggression and active resistance, shortly after the first deployment of Officer Dudka’s Taser, he stops. At 00:56:44 of the body-worn camera footage § 87(2)(b) can be seen sitting slumped on the bench, Officer Horun is sitting on top of him and has § 87(2)(b) left hand in his grip, and § 87(2)(b) is not moving his hands or his body but can be seen bleeding from his face. He remains in this posture without moving, and aside from stating that he has hemophilia and needs to go to the hospital, he says nothing else to the officers. (CCRB Ex. 2 00:56:47-57). While § 87(2)(b) remains in this posture, unspeaking and maintaining eye contact with the camera, Officer Horun looks directly at Officer Dudka and says, “yo, tase him now.” (CCRB Ex. 2 00:56:59-57:05) He then looks at § 87(2)(b) and says, “give me your fucking hands,” then turns back to look at Officer Dudka and says, “drive-stun, now.” *Id.* Without waiting for a response, PO Horun turns around and punches § 87(2)(b) in the side of the head. (CCRB Ex. 2 57:05). After the punch, § 87(2)(b) slumps forward with his head down. (CCRB Ex. 2 00:57:05-14). Without pause, Officer Horun grabs § 87(2)(b) by the collar and pushes § 87(2)(b) down against the bench, with Officer Horun’s other hand going to his head to press down. *Id.* § 87(2)(b) is not moving except where Horun is pushing him, § 87(2)(b) hands are not doing anything (his left hand is seen hanging limp, and his Officer Horun is pressing down on his right arm). *Id.* § 87(2)(b) is immobilized by Officer Horun pressing down on him with the officer’s full body weight, while he bleeds profusely from his head. *Id.*

§ 87(2)(b) is not bracing, tensing, pushing. In her testimony, Officer Dudka agreed that § 87(2)(b) is not moving his body and he's not swinging or moving his arms or hands, and the body-worn camera does not show him to be pushing, verbally or physically making any threats or overt acts of assault, nor would he have the ability in that moment to carry it out. (CCRB Ex. 2 00:56:44-57:14, Trial Transcript Pg. 86). Prior to the punch, § 87(2)(b) was simply failing to comply with a lawful command, and after the punch, he goes limp and is also immobilized with physical force. Thus, at this point § 87(2)(b) is no longer actively resisting or displaying any active aggression. He is, at best, passively resisting.

Nevertheless, Officer Dudka responds to these circumstances by tasing § 87(2)(b) in drive-stun mode, which is strictly prohibited in the text of the Patrol Guide ("strictly prohibited to use the CEW on persons ... on persons who passively resist (e.g., going limp, offering no active physical resistance)"). Therefore, Officer Dudka violated Patrol Guide 221-08 when she tased § 87(2)(b) while he was injured, immobilized, and, at most, passively resisting.

III. Officer Dudka's Use of Force Was Not Justified Pursuant to NY Penal Law § 35.30

In his Draft Decision, ADCT Gamble contends that, "the issue before this Tribunal is whether CCRB disproved that Respondent's use of force was "necessary" to effect Complainant's arrest or to defend against what she "reasonably believed" was the "use or imminent use of physical force" by Complainant against P.O. Horun." Tribunal Decision Pg. 18.) We disagree with the Tribunal's finding that CCRB has not done so. Officer Dudka's use of her Taser in drive-stun mode while § 87(2)(b) was injured, bleeding from the head, and being kept immobilized by physical force, was objectively unreasonable and excessive.

As stated in the Draft Decision, justification is a defense. N.Y. Penal Law § 35.30 provides that "a police officer or a peace officer, in the course of effecting or attempting to effect an arrest ... of a person whom he or she reasonably believes to have committed an offense, may use physical force when and to the extent he or she reasonably believes such to be necessary to effect [an] arrest, or to prevent [an] escape from custody, or in self-defense or to defend a third person from what he or she reasonably believes to be the use or imminent use of physical force."

Under New York law, the "justification defense" pursuant to Section 35.30(1) "requires the jury to conduct precisely the same analysis as does the reasonableness standard" under the Fourth Amendment. *Heath v. Henning*, 854 F.2d 6, 9 (2d Cir. 1988). The text of the statute, the use of physical force "when and to the extent [the officer] reasonably believes such to be necessary," is the "functional equivalent" of an objective reasonableness standard. *Id.* Reading subjective intent into the reasonableness calculation is reversible error; the standard is strictly an objective reasonableness one. *Tardif v. City of N.Y.*, 991 F.3d 394 (2d Cir. 2021).

In determining whether the use of force was reasonable, the trier of fact must consider "the facts and circumstances of each particular case, including" three main factors: 1) "the severity of the crime at issue," 2) "whether the suspect poses an immediate threat to the safety of the officers or others," and 3) "whether he is actively resisting arrest or attempting to evade arrest by flight." *Graham*, 490 US at 396, *Vizzari v Hernandez*, 1 A.D.3d 431 (2d Dept 2003), *Brown v. City of New York*, 798 F.3d 94 (2d Cir. 2015).

Once the justification defense has been raised, the prosecution will prevail if it can prove that either the respondent lacked the subjective belief that the force was necessary or that this subjective belief on the part of the respondent was not objectively reasonable. In this case, the evidence proved by a preponderance that Officer Dudka's subjective belief that § 87(2)(b) was

an imminent threat to the safety of the officers or others in the vicinity in the moments leading up to her second tase was not objectively reasonable.

While the severity of crime at issue does weigh in favor of Officer Dudka, there is some discrepancy as to the degree of severity. It is undisputed that the officers were responding to multiple 9-1-1 calls regarding an attack on the train by a suspect with a weapon. During trial, Officer Dudka testified that information conveyed was that a knife was involved and used to stab a victim in the head. (Trial Transcript P. 32). However, during cross-examination, she was confronted with her sworn statement provided to the CCRB on April 15, 2021, that the information had come over as a “flashing with a baton.” (Trial Transcript P. 32). While flashing with a baton is still concerning, in that the suspect has a weapon, it is less severe than stabbing with a knife. Officer Dudka’s statement to the CCRB was closer in time to the actual incident and could not have been influenced by the review of documents and materials that were provided later in discovery, unlike her testimony at trial, thus undermining its credibility.

The next factor is whether a suspect poses an immediate threat to the safety of the officers or others. Upon approaching § 87(2)(b) Officer Dudka did not see a weapon in § 87(2)(b) hand, she could not tell if his jacket contained a weapon, and § 87(2)(b) did not verbally threaten her physically nor with a weapon specifically. (Trial Transcript Pg. 60-61, 105-106). This remained the case through the duration of their interaction. Only after the arrest was effectuated and § 87(2)(b) was cuffed and in custody were any weapons recovered from his person and backpack. (Trial Transcript Pg. 43, 60-61).

While it is undisputed that § 87(2)(b) did actively resist and attempt to flee during the middle portion of this incident, his initial interactions and his interactions after the first tase were of a person who was not actively resisting or fleeing. However Officer Dudka’s testimony, based on her perceptions of the interaction, described all interactions with § 87(2)(b) as immediately combative and continually aggressive until the point he was restrained: “I used the drive-stun mode in order for § 87(2)(b) to comply because he was aggressive entire time and he posed a danger to me, my partner and multiple people on scene.” (Trial Transcript P. 50). Just like this statement, her testimony is often in conflict with her later admissions on cross-examination and with her body-worn camera.

For example, during her testimony Officer Dudka states that upon approach, § 87(2)(b) did allow her to grab his hand but did not let her hold it, he very quickly pulled away and an immediately started saying, “you will have to shoot me.” (Trial Transcript P. 99). She stated § 87(2)(b) was not speaking to her about the incident, she did not hear him say he defended himself, she did not ask questions, she did not give him any commands, and she did not ask him about any weapons or conduct a pat down. (Trial Transcript P. 101-104). Despite multiple review of the body-worn footage, she also stated that she never said, “we will figure this out.” (Trial Transcript P. 104).

In contrast, in the BWC footage, § 87(2)(b) is seen walking through the platform exit door calmly and at a normal pace, approaching the officers in the vestibule area with his hands slightly raised, allowing Officer Dudka to take his hand into her grip (immediately upon approaching him, both officers move to grab his hands). (CCRB Ex. 2, 00:55:48-51). Both officers maintain a loose grip on his hands, Officer Dudka is in front of him and Officer Horun is behind him. (CCRB Ex. 2, 00:55:51-55). § 87(2)(b) is explaining what happened – he’s loud but not aggressive, he says he was assaulted on the train and he defended himself. *Id.* During this explanation, Officer Dudka’s hand is still gripping § 87(2)(b) wrist, and he does not try to pull away at this point. *Id.* When the officers take out their handcuffs, further signaling their intent to

restrain § 87(2)(b) he asks, “can I take my backpack off at least”, followed by, “I didn’t do anything, why are you arresting me?” (CCRB Ex. 2, 00:56:00-02, 00:56:05-07). The only explanation offered to § 87(2)(b) was when Officer Dudka simply states, “we are gonna ... we’ll figure this out” as she places her free hand on the same arm she’s already gripping and goes to push that arm behind his back. (CCRB Ex. 2, 00:56:05-07). It is only after this seemingly cooperative exchange that § 87(2)(b) pulls his hand away and says, “you will have to shoot me,” and attempts to flee.

Additionally, during her testimony Officer Dudka stated that she didn’t see Officer Horun punch § 87(2)(b). In the body-worn camera, it is clear Officer Horun looked directly at her and spoke to her the second before the punch. (CCRB Ex. 2, 00:57:00-05). Her BWC – and therefore her body – was angled to capture the punch from a close distance. *Id.* While it was a chaotic scene, it is unreasonable given those circumstances that Officer Dudka could have missed the punch and yet she says she did. This is significant because Officer Horun’s punch further injured and subdued § 87(2)(b). Thus, it was an essential and material fact that Officer Dudka should have considered in her ongoing evaluation of whether force was necessary and to what extent. Additionally, the BWC shows that § 87(2)(b) slumps on the bench with his head down after the punch and is intermittently closing his eyes. (CCRB Ex. 2, 00:57:05-14). A person who has just been punched in the head, who is exhibiting signs of disorientation, and who is bleeding profusely poses significantly less threat to safety than Officer Dudka’s testimony would suggest.

Officer Dudka testified that the officers’ safety could have been compromised because § 87(2)(b) right before she tased him in drive-stun mode, was going for partner’s gun belt. Officer Dudka testified, “My partner was unable to cuff him on the bench, and the perpetrator started reaching for my partner’s gun belt. ... at that point, my partner said you have to drive-stun him. ... I gave the perpetrator a few seconds ... He did not comply. That’s when I came up closer to the perpetrator and placed my Taser in a drive-stun mode.” (Trial Transcript P. 38-39). Aside from the fact that Officer Dudka completely bypasses the moment when Officer Horun punches § 87(2)(b) she has described an act that she believes occurs prior to the punch. She testified on cross-examination that the hand that is reaching for Officer Horun’s belt is § 87(2)(b) left hand and then agreed that Officer Horun actually had § 87(2)(b) left hand in his grip at this time to prevent him from actually reaching his belt. (Trial Transcript 84). She confirmed during cross-examination that Officer Horun’s instruction for her to tase § 87(2)(b) is motivated by this perceived reach for the belt. (Trial Transcript P. 85). Most importantly, the body-worn camera shows that after Officer Horun gives her this instruction, he punches § 87(2)(b) in the head, pushes § 87(2)(b) with his full weight into the bench, where § 87(2)(b) remains immobilized and his left hand is hanging limply off of the bench – and these are the actual conditions under which Officer Dudka steps in to tase § 87(2)(b) in drive-stun mode. (CCRB Ex. 2, 00:57:05-14).

Thus, her self-serving statements and perception of events are not accurate in capturing the full reasonableness calculation. Cumulatively, the evidence shows that § 87(2)(b) did not and could not have posed an immediate threat to anyone’s safety at the time Officer Dudka tased him in drive-stun mode.

The final factor to consider in the reasonableness of the officer’s actions is whether the subject of the arrest was resisting. While some courts have stated that force can be used to affect an arrest even where resistance is passive or officer is met with non-compliance, these cases weigh passive as opposed to active resistance against the defendant-officer, more often finding it to be excessive, and therefore unreasonable, to use force against a person who is passively resisting or non-threatening. *MacLeod v. Town of Brattleboro*, 548 Fed. Appx. 6 (2d Cir. 2013).

It is clearly established in the Second Circuit that "it [is] a Fourth Amendment violation to use 'significant' force against arrestees who no longer actively resisted arrest or posed a threat to officer safety." *Garcia v. Dutchess Cty.*, 43 F. Supp. 3d 281 (S.D.N.Y. 2014).

In *Brown v. City of New York*, 798 F.3d 94 (2d Cir. 2015), the court weighed the "active resistance" factor against the defendant-officers and made a finding of excessive force where the arrestee was not fleeing, physically attacking an officer, or even making a move that an officer could interpret as an attack at the time she was twice pepper sprayed; her "resistance" was simply her refusal to permit application of handcuffs by not complying with orders to place her hands behind her back. In *Sullivan v. Gagnier*, 225 F.3d 161, 163 (2d Cir. 2000), the court explained, "The fact that a person whom a police officer attempts to arrest resists . . . no doubt justifies the officer's use of *some* degree of force, but it does not give the officer license to use force without limit." In *Sullivan*, the arrestees purposefully made themselves more difficult to arrest by chaining themselves together and covering their hands with maple syrup to impede the use of handcuffs, so the officers used force to gain compliance. *Id.* The court found a reasonable jury could determine that the officers gratuitously inflicted pain in a manner that was not a reasonable response to the circumstances. *Id.*

A finding of excessive, and thus objectively unreasonable, use of force is particularly true in cases of passive resistance involving a taser. It is "clearly established that officers may not use a taser against a compliant or non-threatening suspect." *Muschette v. Gionfriddo*, 910 F.3d 65 (2d Cir 2018); *Tracy v. Freshwater*, 623 F.3d 90 (2d Cir. 2010); *Penree v. City of Utica*, 694 F. App'x 30 (2d Cir. 2017) ("Therefore, we have little trouble concluding on the facts in the record viewed in the light most favorable to Plaintiffs that Defendants violated clearly established law prohibiting the use of tasers, without warning, against nonviolent, non-fleeing, non-resisting arrestees.").

Even resistance sufficient to result in conviction for resisting arrest does not preclude a finding of "excessive force in effectuating the arrest." *Sullivan*, 225 F.3d at 163.

While these cases do grapple with the differences between "active" versus "passive" resistance, they do not necessarily attempt to define the terms. However, the NYPD Departmental Policy clearly defines these terms and lays standards for what level of force should correspond. Departmental Policy helps to provide the standard for objective reasonableness in any given jurisdiction:

"The facts and circumstances relevant to the objective reasonableness analysis include police training and experience. Police experience includes regulations and policies that are meant to govern or guide their interactions with civilians. Such police regulations, including use of force policies, reflect the standards of care that are to be expected of law enforcement officers in such interactions. Whether a law enforcement officer who uses force against a civilian followed the relevant standards of care or their related training are important facts and circumstances for the jury to consider in evaluating whether a use of force was reasonable or not."

Brown, 798 F.3d at 101.

The Supreme Court in *Garner v. Tennessee*, 471 U.S. 1 (1985), considered police regulations of several jurisdictions in making a constitutional ruling on excessive force. Regulations of a single department have also been considered relevant to a constitutional ruling

on excessive force. *See Ludwig v. Anderson*, 54 F.3d 465 (8th Cir. 1995); *Maddox v. City of Los Angeles*, 792 F.2d 1408 (9th Cir. 1986).

The Second Circuit has endorsed consideration of the NYPD Patrol Guide in evaluating the objective reasonableness of police uses of force and seizures under the Fourth Amendment. In *Brown*, 798 F.3d 94, the Second Circuit considered NYPD Patrol Guide provisions setting out NYPD pepper spray policies in considering whether NYPD members' uses of force, including pepper spray, against a protester were objectively reasonable or not.

In the New York state law context, the courts routinely look to the NYPD Patrol Guide in evaluating the objective reasonableness of NYPD uses of force. *Lubecki v. City of New York*, 304 A.D.2d 224, 234-35 (1st Dept. 2003), *lv denied*, 2 NY3d 701 (2004). In *Lubecki*, the court held that "the rules and guidelines set forth in the [NYPD] police patrol guide" were admissible "for purposes of evaluating whether the officers adhered to or materially deviated from prescribed protocol" in using force against a private citizen. *See also, Cerebelli v. City of New York*, 2008 U.S. Dist. LEXIS 109341 (EDNY Sept. 8, 2008, *aff'd without objection*, 2008 U.S. Dist. LEXIS 77335 (EDNY Oct. 1, 2008) ("To determine whether a defendant acted with reasonable care, the court may turn toward departmental guidelines, such as the Patrol Guide, to discern the relevant duty of care required from a police officer."); *Conrad v. City of New York*, 192 AD3d 505, 505 (1st Dept 2021) (using guidelines from Patrol Guide to inform the standard of care in evaluating objective reasonableness of NYPD conduct, including whether they violated "clearly established procedures or protocol"); *Johnson v. City of New York*, 65 AD3d 476, 477-78 (1st Dept 2009) ("In this case, there has been no showing that any police guidelines were violated."). Most relevant to the case at hand, the court in *Pacheco v. City of New York*, 104 AD3d 548 (1st Dept 2013) considered the NYPD Patrol Guide to determine if "the [defendant] officer's action comported with acceptable police practice" in using a taser.

This Tribunal wrongfully determined that Officer Dudka was legally justified in using force without even weighing the use of force guidelines outlined in the Patrol Guide that define the objectively reasonable standards for use of force with a CEW. As established in Part II., Officer Dudka violated the provisions of the Patrol Guide on Use of Force with a CEW with her actions by using her Taser on § 87(2)(b) while he was passively resisting. As such, Officer Dudka's second use of her Taser in drive-stun mode was objectively unreasonable.

Moreover, the use of her Taser in drive-stun was excessive because Officer Horun was already applying physical force, which immobilized § 87(2)(b) (CCRB Ex. 2. 00:57:05-14). Officer Dudka also should have waited just 30 seconds because other officers ("back up"), who she called earlier, were expected to arrive imminently, and did in fact arrive less than 20 seconds after the tase. (CCRB Ex. 2. 00:56:28-32, 00:57:14-27, 00:57:44).

For the above stated reasons, the evidence at trial proves by a preponderance that the CCRB established every element of the crime of Assault in the Third Degree as well as violation of Patrol Guide Section 221-08. Further, the Respondent's purported justification defense was disproved by a preponderance of the evidence. Accordingly, as it relates to penalties, for Specification one (1), intentional use of force, a Taser, in an attempt to cause physical injury, the presumptive penalty is thirty (30) days. Based on the presented arguments above, CCRB respectfully requested that you reject ADCT Gamble's findings, find the Respondent guilty of Specification One (1) and accept CCRB's recommended penalty of the forfeiture of Fifteen (15) vacation days.

Respectfully submitted,

Mallika Kaushal

MALLIKA KAUSHAL

APU PROSECUTOR

NYC CIVILIAN COMPLAINT REVIEW BOARD

ADMINISTRATIVE PROSECUTION UNIT